

ORDER SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

Crl. Misc. No.931-B/2020/BWP

Mst. Sughran Mai **Vs.** The State & another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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16.04.2020	Syed Zafar Hussain Shah, Advocate for the petitioner. Mr. Muhammad Rashid Ali Khan, Advocate for the complainant/respondent No.2. Mr. Shahid Farid, Assistant District Public Prosecutor with Akhtar, ASI.
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Through the instant petition filed under section 497 Cr.P.C., the petitioner namely Mst. Sughran Mai seeks post-arrest bail in the case FIR No.101 of 2020, dated 01.03.2020, registered at Police Station Khairpur Tamewali, District Bahawalpur, in respect of offences under sections 302 and 34 PPC.

2. The allegation as against the petitioner, culled from the evidentiary material produced before the Court, is that she along with her unknown co-accused committed the *Qatl-i-Amd* of Rana Shaukat Ali (deceased), father of the complainant.

3. I have heard the learned counsels for the parties and have gone through the record of this case with their able assistance.

4. A Court considering a bail application has to tentatively look to the facts and circumstances of the case and once it comes to the inference that no reasonable ground exists for believing that the accused has committed a non-bailable offence, it has the discretion to release the accused on bail. In order to ascertain whether reasonable grounds exist or not, the Court should confine itself to the material placed before it by the prosecution to see

whether some perceptible evidence is available against the accused, which if left un rebutted, may lead to inference of guilt. Reasonable grounds are not to be confused with mere allegations or suspicions nor with tested and proved evidence, which the law requires for a person's conviction for an offence. The term "reason to believe" can be classified at a higher pedestal than mere suspicion and allegation. Even the strongest suspicion cannot transform in "reason to believe." It has been noticed by this Court that there is no eye-witness of the alleged occurrence. The total basis of allegation against the petitioner is the suspicion of the complainant and the witnesses. Suspicion, however strong, cannot be considered proof of any fact. During the investigation of the case, nothing was recovered from the possession of the petitioner. A perusal of the evidentiary material produced before the Court reveals further that the petitioner had no motive to murder Rana Shaukat Ali (deceased) with whom, according to the prosecution case itself, the petitioner was having an illicit liaison. The prosecution is bereft of any evidence pointing towards the guilt of the petitioner. Furthermore no opinion regarding the cause of death has been given as yet and the cause of death of the deceased remains undetermined. The requirement of law that there should be reasonable ground to believe that the accused has committed the offence could not be prima facie established by the prosecution. The august Supreme Court of Pakistan in the case of *"Husnain Mustafa and The STATE and another"* (2019 S C M R 1914) has held as under :-

"Brutality inflicted upon the innocent souls is most appalling to say the least, however, in the chequered circumstances of the case, what cannot be lost sight of is that the complainant, though most grievously aggrieved and devastated, nonetheless, is not eye-witness of the crime; his initial belief that the petitioner in connivance with his former wife murdered the children is essentially

structured upon a suspicion;

.....

Horrors of an (sic) heinous crime cannot impede release of accused on bail, if otherwise his guilt called for further probe nor bail can be withheld as a strategy for punishment.”

5. Mere involvement in a heinous offence is no ground for refusing bail to an accused who otherwise becomes entitled for the concession of bail. Being woman, the case of the petitioner Mst. Mst. Sughran Mai is covered by first proviso to sub-section (1) of section 497, Cr.P.C. The age of the petitioner has been recorded as 55/60 years by the Investigating Officer. The petitioner is a previous non-convict and never involved in any other case. She is behind the bars since 02.03.2020 but her trial has not seen any fruitful progress as yet. Investigation of the case is complete and the petitioner is no more required for further investigation, therefore, her further incarceration would not serve any useful purpose.

6. For what has been discussed above, the case of the petitioner becomes one of further inquiry covered by subsection (2) of section 497, Cr.P.C. Liability of petitioner for the said offences would be determined by the learned trial court after sifting the evidentiary worth of the material produced before the same. Till then, case of petitioner would be within the domain of section 497(2), Cr.P.C. calling for further inquiry into the petitioner's guilt. The petition in hand is accepted and the petitioner is admitted to post-arrest bail subject to her furnishing bail bonds in the sum of Rs.10,000/- (rupees ten thousand only)

with two sureties each, in the like amount, to the satisfaction of learned trial court.

7. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial court.

(Sadiq Mahmud Khurram)
Judge

RAHEEL

Approved for Reporting

Judge